

	2024-01423675	The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of an \$1,850,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The parties should state the estimated average, high and low individual class and average, high and low individual PAGA payments. 2. Plaintiff should state plaintiff's total compensation anticipated to be received (including for any individual claims and excluding any enhancement award). Plaintiff should also state in a declaration filed with the court the estimated number of hours she has spent working on the case. 3. A copy of the LWDA notice letter should be submitted to the court. 4. The word "Actions" in paragraph 1.31 of the settlement agreement should be replaced with "in Case No. 2024-01423675." 5. The court prefers a 60-day period for the submission of exclusions, objections and disputes. Are there special circumstances here that warrant the shorter period the parties propose? See, e.g., Settlement Agreement ¶¶ 1.44, 7.4.4, 7.5.1, 7.6. 6. The "Response Deadline" provision in paragraph 1.44 should include disputes. 7. The parties (plaintiff and defendant) should advise, in declarations filed with the court, whether, after making reasonable inquiry and since the time the settlement agreement was signed, they have become aware of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action and, if any such actions are known to exist, the declarations shall also state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. 8. The parties and their counsel must state in declarations filed with the court whether they have an interest in the cy pres recipient, including its governance. The parties should also provide a declaration demonstrating the propriety of the cy pres recipient and of a distribution under Civil Procedure Code section 384, and the parties should explain why a cy pres distribution fulfills the purposes of the lawsuit or is otherwise appropriate. 9. The phrase "Aggrieved Employees" should be inserted in the first sentence of paragraph 5 after "Class Members" and before "and Class Counsel."
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		10. The "Released Class Claims" provision in paragraph 5.2 is overbroad. The release of the class members' claims must be fairly tailored to the claims that were or reasonably could have been asserted in the lawsuit based on the facts alleged in the operative complaint. In addition, the phrase "or ascertained during the Action" should be removed. 11. The "Released PAGA Claims" provision in paragraph 5.3 is overbroad. The phrase "or ascertained during the Action" should be removed. 12. The dispute procedure in the second-to-last sentence in paragraph 7.6 should be revised to state: (i) the parties shall file with the court all disputes submitted by class members, the evidence submitted, and the resolution of the disputes, and (ii) although the settlement administrator may make the initial decision regarding claim disputes, the court may review any decision made by the settlement administrator regarding a claim dispute. Paragraph 7.8.4 of the settlement agreement should also be revised accordingly. In addition, in the fourth sentence of paragraph 7.6, the phrase "and PAGA Pay Periods" should be inserted after "Workweeks" and before "contained." 13. Subsection (2) in paragraph 8 should be removed, as should be the third-to-last sentence in the same paragraph. The court will not approve a settlement that permits defendant to shorten the class or PAGA period. 14. While the court will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. Plaintiff's counsel should address in the supplemental filing whether any such unique circumstances exist here. 15. Plaintiff's counsel seeks costs not to exceed \$30,000. Plaintiff's counsel should provide an itemized list of costs incurred to date. Nonrecoverable items such as postage, mailing and legal research charges should not be included. 16. Plaintiff seeks an enhancement award of \$10,000. While the court will not determine the amount of any enhancement award for plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. Plaintiff should address in the supplemental filing whether any such unique circumstances exist here. 17. The parties should provide the settlement administrator's qualifications and experience, including evidence that the settlement administrator has procedures in place to protect the security of class data, and sufficient insurance in the event of a data breach or mishandling of the settlement
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		funds. The parties should also submit a copy of the settlement administrator's invoice. 18. The parties (plaintiff and defendant) should state in declarations filed with the court whether they are aware of any class, representative or other collective action in any other court that asserts claims similar to those asserted in this case, other than <i>Malecki v. Frisbie Management, Inc.</i>, Case No. 2025-01452208. If any such actions are known to exist, the declarations shall state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. <u>As to the notice:</u> 19. The notice should be revised consistent with the above. 20. As a general observation, the notice should be substantially shortened and duplicative language and sections should be removed. In addition, redundant section headings (e.g., "BASIC INFORMATION"; "WHO IS INCLUDED IN THE SETTLEMENT?"; etc.) should be removed throughout the document. 21. The word "strongly" should be removed from the last sentence of the first paragraph on page 1. 22. The word "already" should be removed from the first sentence of the fifth paragraph on page 1. 23. The following sentence at the bottom of page 1 should be removed: "You will be deemed to have carefully read and understood it." 24. The following phrase should be inserted after "Defendant" and before "at some point(s)" in the first sentence of section 1: "as an hourly-paid non-exempt employee." 25. The word "Administrator" should not be capitalized in the first sentence of the third paragraph of section 1. 26. The word "strongly" should be removed from the last sentence in section 2. 27. Section 3 ("Why Is This A Class Action?") should be removed. 28. The second, third and fourth sentences of section 4 should be removed, as should the word "Instead" at the beginning of the fifth sentence. 29. The Gross Settlement Amount in the first sentence of section 7 need not be spelled out in words. 30. The word "Fairness" in the first sentence of section 10 should be replaced with "Approval." 31. The second sentence of the first paragraph of section 11 should end after "Defendant." The remainder of that
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		sentence is inconsistent with the settlement agreement and should be removed. See Settlement Agreement ¶ 1.42. 32. The "Released Class Claims" in section 11 is inconsistent with the settlement agreement which must, as stated above, be revised. 33. The "Released PAGA Claims" in section 11 is appropriately tailored, but inconsistent with the settlement agreement which must, as stated above, be revised. 34. The method of submitting an exclusion stated in section 12 is inconsistent with the settlement agreement and should be revised. 35. The court prefers the notice be accompanied by separate objection, exclusion and dispute forms for those class members wishing to object, exclude themselves or dispute the number of workweeks. The settlement agreement and the notice should be revised accordingly to address use of separate objection, exclusion and dispute forms. 36. The first two sentences of section 15 should be removed and be replaced with the following: "Class Counsel's contact information is listed below." 37. The following phrase should be removed from the third sentence of section 17: "and notices of intent to appear at the Final Approval Hearing." 38. The method of submitting objections stated in section 17 is inconsistent with the settlement agreement and should be revised. 39. Section 18 should be removed. 40. The court department (CX105) should be updated throughout the notice (e.g., in section 19). 41. The method of submitting objections stated in section 20 is inconsistent with the settlement agreement and should be revised. 42. Will the settlement administrator maintain a website for the case? If so, section 22 should state that the settlement administrator will post all key documents on its website, including the operative complaint, the settlement agreement and any amendments, the class notice and any included forms, the orders granting preliminary and final approval, and the judgment. The judgment should be posted for at least 180 days. 43. The second sentence of the box in section 22 should be removed. 44. Should the notice be provided in any language other than English? If so, a certified copy of the translated notice should be attached to the proposed order as an exhibit.
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As to the proposed order (ROA 69, 79):

45. The proposed order should be revised consistent with the above.
46. The court department (CX105) should be updated on the caption page and throughout the document.
47. The last sentence of paragraph 1 should be revised to state that the settlement agreement (and any amendment(s) thereto) is attached to the proposed order as an exhibit. The reference to the Yslas Declaration should be removed.
48. The phrase "to create a common fund" in paragraph 2 should be replaced with "to pay the Gross Settlement Amount."
49. The proposed order should define the Aggrieved Employees and the PAGA Period.
50. The word "fairness" in paragraph 4 should be replaced with "approval."
51. The word "provisionally" in paragraph 5 should be replaced with "preliminarily."
52. In paragraphs 8, 9 and 10, the word "preliminarily" should be inserted before "appoints."
53. The second sentences of paragraphs 8 and 9 should be removed.
54. Paragraph 10 should end after "the Settlement Administrator." The remaining portion of that sentence should be removed.
55. Paragraph 11 should be revised to state that notice packet is attached to the proposed order as an exhibit.
56. The phrase "their counsel, and the Settlement Administrator" should be inserted in paragraph 12 after "Parties" and before "are ordered to carry out."
57. Paragraph 13 should be removed.
58. The proposed order should state that the court retains jurisdiction to enforce the Settlement pursuant to Civil Procedure Code section 664.6.

The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to November 19, 2026 at 2:00 p.m. in Department CX105 to permit the parties to address and respond to the above issues. See *also* Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement is directed, rather than "amended

		<u>settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
9	Masadas v. California Dinner Entertainment, LLC 2023-01354556	<u>Plaintiffs' Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for approval of an \$620,000 PAGA settlement. Subject to plaintiffs' submission of the documents identified below, the court grants the motion as follows: \$1,000.00 enhancement award to each plaintiff (\$3,000.00 total); \$186,000.00 for attorneys' fees; \$26,933.70 for attorneys' costs (see No. 1 below); \$4,250.00 for settlement administration fees (see No. 2 below); and \$399,816.30 total PAGA penalties (\$299,862.22 to LWDA). 1. Blackstone Law, APC previously sought reimbursement of \$7,874.89 in costs. See 3/12/26 Order (ROA 105) No. 7. Blackstone Law, APC now seeks reimbursement of \$10,141.45 in costs. Blackstone Law, APC provides no explanation for the disparities in entries and amounts between the itemized costs statement it previously submitted (Rose Decl. (ROA 81) Ex. 4) and the itemized costs statement it submitted with the most recent supplemental papers (Rose Decl. (ROA 117) Ex. 4). The court thus approves \$7,758.19 in Blackstone Law, APC costs (\$7,874.89 less mailing changes and the "Wizzy Marketing" cost). See 3/12/26 Order (ROA 105) No. 7. 2. The court approves \$4,250 in settlement administration fees, i.e., \$5,000 less the \$750 fee for the language translation that counsel states is not required. See ROA 111 (¶ 13); ROA 79 (Ex. C at 2). 3. Blackstone Law, APC states that it has a referral fee agreement with Tork Law Firm. Rose Decl. (ROA 117) ¶ 13. Blackstone Law, APC must file a declaration <u>by July 23, 2026</u> describing the financial terms of the agreement with Tork Law Firm. Plaintiffs are ordered to submit <u>by July 23, 2026</u> a proposed order and judgment (including the above amount) with all exhibits attached (settlement agreement; amendments thereto; and notice letter). The notice letter should be revised to include the above amounts.